

Content Creator Sponsorship Agreement

This agreement is dated _____.

Parties

(1) _____, a company incorporated in _____ under company number _____ whose registered office is at _____ (AlgoAlpha); and

(2) _____ of _____ (the Creator).

Background

(A) AlgoAlpha develops trading indicators and analytics tools used on the TradingView platform and operates a paid subscription service for those tools (the **Product**).

(B) The Creator produces and publishes video and related content to an audience on the channel identified in Schedule 1.

(C) AlgoAlpha wishes to engage the Creator to produce and publish sponsored content promoting the Product in return for a fixed fee and a commission, and the Creator wishes to accept that engagement, on the terms of this agreement.

It is agreed as follows.

1. Definitions and interpretation

1.1 In this agreement:

Business Day means a day other than a Saturday, Sunday, or public holiday on which banks are generally open for business.

Commencement Date means the date of this agreement.

Commission means the percentage of Net Revenue stated in Schedule 1, payable on each Referred Subscriber for the Commission Period.

Commission Period means, for each Referred Subscriber, the period stated in Schedule 1.

Deliverable means the content the Creator is to produce and publish, as described in Schedule 1.

Fee means the fixed sponsorship fee stated in Schedule 1.

Net Revenue means the subscription sums AlgoAlpha actually receives from a Referred Subscriber, less payment processing fees, taxes, refunds, and chargebacks.

Referred Subscriber means a person who first becomes a paying subscriber to the Product through the Creator's tracking link or code issued under clause 6.

1.2 A reference to a clause or Schedule is to a clause of or Schedule to this agreement. Clause headings do not affect interpretation. Words following *including*, *includes*, or *for example* are illustrative and do not limit the words before them.

2. Engagement

2.1 AlgoAlpha engages the Creator, and the Creator agrees, to produce and publish the Deliverable and to perform its other obligations under this agreement.

2.2 The Creator is engaged as an independent contractor. Nothing in this agreement creates an employment, partnership, agency, or joint venture relationship between the parties.

3. Term

3.1 This agreement begins on the Commencement Date and continues until the Deliverable has been published and every Commission Period has ended, unless terminated earlier under clause 13.

4. The Deliverable

4.1 The Creator shall produce and publish the Deliverable in accordance with Schedule 1, including any format, content points, and publication date stated there.

4.2 Where Schedule 1 requires it, the Creator shall submit a draft or outline to AlgoAlpha before publication. AlgoAlpha may require changes only to correct factual inaccuracies about the Product or to secure compliance with clause 8, and shall not otherwise direct the Creator's editorial content or opinions.

4.3 The Deliverable is complete when it has been published in the required format, remains publicly available, and includes a functioning tracking link or code as required by clause 6 and Schedule 1.

5. Fee

5.1 In consideration of the Deliverable, AlgoAlpha shall pay the Creator the Fee in two equal instalments: as to fifty per cent (50%) within five Business Days of the Commencement Date, and as to the remaining fifty per cent (50%) within five Business Days after the Deliverable is complete under clause 4.3.

5.2 AlgoAlpha shall pay the Fee to the account the Creator notifies in writing. Each party bears its own taxes, and the Creator is responsible for any income or self-employment tax on sums it receives.

5.3 If the Creator fails to publish the Deliverable by the date in Schedule 1 for reasons not attributable to AlgoAlpha, AlgoAlpha may by written notice allow a reasonable further period and, failing publication within it, terminate under clause 13.2 and recover the instalment paid under clause 5.1, less any reasonable production costs the Creator has actually and demonstrably incurred.

6. Commission and tracking

6.1 In addition to the Fee, AlgoAlpha shall pay the Creator the Commission on each Referred Subscriber for that subscriber's Commission Period.

6.2 AlgoAlpha shall issue the Creator a unique tracking link and, where applicable, a discount code before the publication date. A subscriber is a Referred Subscriber only where AlgoAlpha's systems record that the subscriber used the Creator's link or code.

6.3 Commission accrues only on Net Revenue actually received. No Commission is payable on sums that are refunded, charged back, uncollected, or fraudulent, and AlgoAlpha may set off or recover Commission already paid on such sums against future payments.

6.4 AlgoAlpha shall account for Commission monthly and pay accrued Commission within thirty days of each month end, with a statement showing Referred Subscribers, Net Revenue, and Commission for the period. AlgoAlpha's records are conclusive as to attribution and Net Revenue, absent manifest error.

6.5 The Creator shall not generate referrals by automated, incentivised, self-referred, spam, or otherwise deceptive means, bid on AlgoAlpha's trademarks in paid search, or otherwise manipulate attribution. AlgoAlpha may withhold or recover Commission connected with any such conduct.

7. AlgoAlpha's obligations

7.1 AlgoAlpha shall pay the Fee and Commission when due, issue the tracking link and any agreed brief and brand assets, and respond promptly to the Creator's reasonable requests under clause 4.2.

7.2 AlgoAlpha grants the Creator a limited, non-exclusive, revocable licence to use AlgoAlpha's name, logo, and Product imagery solely to produce and publish the Deliverable.

8. Disclosure, accuracy, and financial promotion

8.1 The Creator shall disclose the Deliverable as a paid promotion clearly and prominently, in compliance with the Federal Trade Commission's Endorsement Guides, the rules of the platform on which it is published, and applicable law.

8.2 The Product is a set of analytical tools and is not financial, investment, or trading advice. The Creator shall not state or imply in the Deliverable that any specific profit, return, or trading result is guaranteed or likely, that the Product removes or reduces the risk of loss, or that AlgoAlpha or the Creator provides personalised financial advice, and shall not make any claim about the Product that is untrue or that the Creator cannot substantiate.

8.3 Where the Deliverable presents trading results or performance, the Creator shall include a clear statement that trading carries a risk of loss, that past performance does not indicate future results, and that the content is for educational purposes and is not financial advice.

8.4 The Creator is responsible for compliance with any financial promotion, advertising, securities, or consumer law that applies to it or its audience. If a regulator or platform requires the Deliverable to be amended or removed, the Creator shall comply and notify AlgoAlpha without delay.

9. Intellectual property

9.1 The Creator retains ownership of the Deliverable, its channel, and its audience. AlgoAlpha retains ownership of the Product and its brand.

9.2 The Creator grants AlgoAlpha a perpetual, worldwide, royalty-free, non-exclusive licence to reproduce, distribute, and display the Deliverable and extracts from it across AlgoAlpha's own marketing channels, including paid advertising, with attribution to the Creator. This licence survives termination.

9.3 The Creator warrants that the Deliverable is its original work or properly licensed and that AlgoAlpha's use of it under this agreement infringes no third-party right.

10. Warranties

10.1 Each party warrants that it has the authority to enter into and perform this agreement.

10.2 The Creator further warrants that its audience and engagement are genuine and not generated by automated or purchased means, that it will comply with clause 8, and that it is not subject to any regulatory restriction that would make its promotion of the Product unlawful or misleading.

11. Confidentiality

11.1 Each party shall keep confidential the terms of this agreement and any non-public information of the other party, and shall use that information only to perform this agreement. This clause does not apply to information that is or becomes public without breach, that the receiving party already lawfully held, or that it is required to disclose by law.

12. Limitation of liability

12.1 Nothing in this agreement limits liability for fraud, for death or personal injury caused by negligence, or for any liability that cannot be limited by law.

12.2 Subject to clause 12.1, neither party is liable for any indirect or consequential loss, or for loss of profit, revenue, or goodwill, and each party's total liability arising out of or in connection with this agreement is limited to the total of the Fee and Commission paid or payable under it.

13. Termination

13.1 Either party may terminate this agreement immediately by written notice if the other commits a material breach that is incapable of remedy or, being capable of remedy, is not remedied within fourteen days of notice.

13.2 AlgoAlpha may also terminate immediately under clause 5.3, or for breach of clause 6.5 or clause 8.

13.3 On termination, AlgoAlpha shall pay any Fee instalment and Commission properly accrued to the date of termination, subject to clauses 5.3, 6.3, and 6.5; at AlgoAlpha's request the Creator shall remove the Deliverable; and clauses 6.3, 8, 9, 11, 12, and 14 survive termination.

14. Indemnity

14.1 The Creator shall indemnify AlgoAlpha against all losses, damages, and reasonable costs arising from any third-party claim, to the extent caused by the Creator's breach of clause 8, 9.3, or 10.2, or by the Creator's unlawful or deceptive conduct in producing or publishing the Deliverable.

15. General

15.1 **Entire agreement.** This agreement and its Schedule constitute the entire agreement between the parties and supersede any prior arrangement on their subject matter.

15.2 **Variation.** No variation is effective unless made in writing and signed by or on behalf of both parties.

15.3 **Assignment.** Neither party may assign or otherwise deal with this agreement without the other's written consent, save that AlgoAlpha may assign to a group company or to a successor of its business.

15.4 **No exclusivity.** This agreement is non-exclusive unless Schedule 1 states an exclusivity period and scope. The Creator may work with other brands provided it does not disparage the Product in the Deliverable.

15.5 **Notices.** Notices must be in writing and sent to the parties' email addresses in the execution block.

15.6 **Third parties.** A person who is not a party to this agreement has no right to enforce any of its terms.

15.7 **Severance.** If any provision is or becomes invalid or unenforceable, the remainder of the agreement continues in force.

15.8 **Counterparts.** This agreement may be executed in any number of counterparts and by electronic signature, each of which is an original and all of which together constitute one agreement.

16. Governing law and jurisdiction

16.1 This agreement and any dispute or claim arising out of or in connection with it are governed by the laws of _____.

16.2 The courts of _____ have exclusive jurisdiction to settle any such dispute or claim.

Schedule 1: Particulars

Term	Detail
Creator channel and URL	
Platform	
Deliverable	
Content points to cover	
Draft review before publication	
Publication date	
Minimum period kept public	
Fee (total)	(paid 50% on signing, 50% on completion)
Commission rate	per cent of Net Revenue
Commission Period	
Exclusivity	

Execution

Executed as an agreement on the date first stated above.

Signed for and on behalf of AlgoAlpha

Signature:

Name: **Gabriel Yong**

Title: **Chief Executive Officer**

Date:

Email:

Signed by the Creator

Signature:

Name:

Date:

Email: